

TENTATIVE RULING

Case: **Espinoza Bail Bonds, Inc. v. Chuang**
Case No. CV2021-0958

Hearing Date: **July 17, 2026** **Department Six** **9:00 a.m.**

Motion for attorney's fees:

The Court declines to rule on plaintiff and cross-defendant Espinoza Bail Bonds, Inc. and cross-defendant Jose Espinoza's (collectively, "cross-defendants") objections to the affidavit of Linda Chuang and the declaration of Ronald Chuang because the evidence objected to was not considered in ruling on this motion.

The Court does not consider cross-defendants' supplemental reply because cross-defendants did not obtain leave to file such a brief. (See Code Civ. Proc., § 1005, subd. (b).)

Cross-defendants' motion for attorney fees and costs pursuant to a written indemnity agreement with Ronald Chuang and Linda Chuang is **DENIED**. First, on March 9, 2026, the Court ordered that "[n]o further Motions may be filed by either party in this case," and cross-defendants did not obtain leave before filing this motion. Second, cross-defendants have failed to establish entitlement to the requested fees. (*Civic Western Corp. v. Zila Industries, Inc.* (1977) 66 Cal.App.3d 1, 16 ["It is elementary that attorney fees must be reasonable, and that the party claiming them must establish (1) not only entitlement to such fees but (2) the reasonableness of the fees claimed."].) Specifically, the indemnity agreements permit the recovery of attorneys' fees and costs "incurred as a result of any forfeiture of the Bond..." (Espinoza decl., ¶¶ 4-5, Exhibits A & B.) Cross-defendants have not shown that, based on this language, they can recover fees and costs incurred in relation to cross-complainants Ronald Chuang and Linda Chuang's cross-complaint for elder abuse. (Hunt suppl. decl., ¶ 4, Exhibit A.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for judgment on the pleadings:

The Court notes that defendants Linda F. Chuang, Ronald Y. Chuang and Ted Chuang failed to meet and confer prior to filing this motion for judgment on the pleadings. (Code Civ. Proc., § 439; Linda Chuang decl., ¶ 3.) However, a "determination...that the meet and confer process was insufficient [is not] grounds to....deny the motion for judgment on the pleadings." (Code Civ. Proc., § 439, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3.)

Defendants' request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court's determination of the motion. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 ["Any matter to be judicially noticed must be relevant to a material issue"].)

Plaintiff Espinoza Bail Bonds, Inc.'s objection to defendants' request for judicial notice is **OVERRULED AS MOOT**, given the Court's ruling on defendants' request for judicial notice.

Plaintiff's request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court's determination of the motion. (*Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825 ["Any matter to be judicially noticed must be relevant to a material issue"].)

Defendants' reply-request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court's determination of the motion. (*Malek Media Group LLC, supra*, 58 Cal.App.5th at p.825 ["Any matter to be judicially noticed must be relevant to a material issue"].)

Defendants' non-statutory motion for judgment on the pleadings dismissing Espinoza Bail Bonds, Inc.'s first amended complaint with prejudice is **DENIED**. On March 9, 2026, the Court ordered that "[n]o further Motions may be filed by either party in this case," and defendants did not obtain leave before filing this motion. Accordingly, the Court declines to consider the motion.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Trial setting conference:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: **SDLD Associates v. Ferrian**
Case No. CV2026-1912

Hearing Date: **July 17, 2026** **Department Two** **1:30 p.m.**

Parties are **DIRECTED TO APPEAR.**